

Bharat Singh Rathore S/O Late Shri ... vs Smt. Sheena Kanwar D/O Dasharath Singh ... on 3 December, 2019

Bench: Sabina, Narendra Singh Dhaddha

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

D. B. Civil Misc. Appeal No. 5812/2019

APPELLANT:

Bharat Singh Rathor son of Late Shri Bhanwar Singh Rathor, by
Caste Rajput, resident of 2-A-1, Naka Madar, Double Storey,
Ajmer.

----APPLICANT-HUSBAND

Versus

RESPONDENT:

Smt. Sheena Kanwar Daughter of Dasharath Singh Shekhawat & wife of Shri Bharat Singh Rathor,
by Caste Rajput, resident of Village Bagwara, Tehsil Amer, District Jaipur.

----NON-APPLICANT/WIFE For Appellant(s) : Mr. Alok Chaturvedi.

HON'BLE MRS. JUSTICE SABINA HON'BLE MR. JUSTICE NARENDRA SINGH DHADDHA
Judgment 03/12/2019 Appellant has filed this appeal challenging order dated 26.09.2019 passed by
the Family Court, Ajmer (hereinafter referred to as 'the trial court').

Learned counsel for the appellant has submitted that the trial court has erred in dismissing the
petition filed by the appellant for annulment of his marriage merely on the ground of limitation.

Appellant had got married to the respondent on 19.04.2013. It is the case of the appellant that he
was aged about 17 years and 10 months at the time of his marriage, whereas, the respondent was
aged about 14 years. Since both the appellant as well as the respondent were minor at the time of
their marriage, the same was liable to be annulled. Appellant had been forced to (2 of 4)
[CMA-5812/2019] marry the respondent on the date of marriage of his elder brother, Bhawani
Singh with Pooja, younger sister of the respondent.

Section 5 of the Hindu Marriage Act, 1955 (hereinafter referred to as 'the Act') reads as under:

"5. Conditions for a Hindu marriage.- A marriage may be solemnized between any
two Hindus, if the following conditions are fulfilled, namely:-

(i) neither party has a spouse living at the time of the marriage;

(ii) at the time of the marriage, neither party-

(a) is incapable of giving a valid consent to it in consequence of unsoundness of mind; or

(b) though capable of giving a valid consent, has been suffering from mental disorder of such a kind or to such an extent as to be unfit for marriage and the procreation of children, or

(c) has been subject to recurrent attacks of insanity;

(iii) the bridegroom has completed the age of twenty-one years and the bride, the age of eighteen years at the time of the marriage;

(iv) the parties are not within the degrees of prohibited relationship unless the custom or usage governing each of them permits of a marriage between the two;

(v) the parties not sapindas of each other, unless the custom or usage governing each of them permits of a marriage between the two;"

Section 12 of the Act reads as under:

"12. Voidable marriages.- (1) Any marriage solemnised, whether before or after the commencement of this Act, shall be voidable and may be annulled by a decree of nullity on any of the following grounds, namely:-

[(a) that the marriage has not been consummated owing to the impotence of the respondent; or]

(b) that the marriage is in contravention of the condition specified in clause (ii) of section 5; or

(c) that the consent of the petitioner, or where the consent of the guardian in marriage of the petitioner [was required under section 5 as it stood immediately before the commencement of the Child Marriage Restraint (Amendment) Act, 1978 (2 of 1978)], the consent of such guardian was obtained by force [or by fraud as to the nature of the ceremony or as to any material fact or circumstance concerning the respondent]; or (3 of 4) [CMA-5812/2019]

(d) that the respondent was at the time of the marriage pregnant by some person other than the petitioner.

(2) Notwithstanding anything contained in sub- section (1), no petition for annulling a marriage-

(a) on the ground specified in clause (c) of sub- section (1) shall be entertained if-

(i) the petitioner is presented more than one year after the force had ceased to operate or, as the case may be, the fraud had been discovered; or

(ii) the petitioner has, with his or her full consent, lived with the other party to the marriage as husband or wife after the force had ceased to operate or, as the case may be, the fraud had been discovered.

(b) on the ground specified in clause (d) of sub-

section (1) shall be entertained unless the court is satisfied-

(i) that the petitioner was at the time of the marriage ignorant of the facts alleged;

(ii) that proceedings have been instituted in the case of a marriage solemnised before the commencement of this Act within one year of such commencement and in the case of marriages solemnised after such commencement within one year from the date of the marriage; and

(iii) that marital intercourse with the consent of the petitioner has not taken place since the discovery by the petitioner of the existence of [the said ground]."

Thus, a perusal of the above provisions would, inter alia reveal that marriage could be solemnised between any two Hindus provided the bridegroom had completed the age of 21 years and the bride had completed the age of 18 years at the time of marriage. Any marriage could be got annulled by a decree of nullity on the grounds enumerated in Section 12 of the Act.

As per Clause (2)(a) of Section 12 of the Act, no petition for annulling a marriage on the ground specified in Clause

(c) of sub-section (1) shall be entertained, which has been presented after more than one year after the force had ceased to operate or, as the case may be, the fraud has been discovered.

(4 of 4) [CMA-5812/2019] In the present case, the appellant was aged about 17 years 10 months on 19.04.2013, i.e., date of marriage. However, the petition for annulment was filed on 31.07.2018, as is evident from Annexure-1. Hence, the petition for annulment had been filed by the appellant beyond the period of limitation as provided under Section 12 of the Act.

Learned trial court has, thus, rightly rejected the petition filed by the appellant as it was time barred. The appellant could have filed the petition for annulment of his marriage with respondent on attaining the age of majority.

No ground for interference is made out.

Dismissed.

(NARENDRA SINGH DHADDHA),J (SABINA),J MANOJ NARWANI /68 Powered by TCPDF
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